

HEADNOTE

- “1. If a person skilled in the art recognises on the basis of their own expertise that they can find a solution in another technical field or that the problem to be solved arises in a similar manner in a factually related field, it is to be assumed that they consult experts or specialists in that technical field or obtain the corresponding information.
2. The inclusion of a particular manufacturing process in a product claim does not change the fact that it is a product claim. The inclusion of the manufacturing process in the patent claim merely serves for indirect further description of the product. It must therefore be examined whether the specified manufacturing process is indirectly reflected in special properties of the product. However, if these special properties can only be achieved by means of the specified manufacturing process, the patent is ultimately limited to products produced by the manufacturing process. Physical and functional properties of the product resulting from the application of the process are among the material features of the claimed product. Whether such features exist and which they are must be determined by interpreting the patent claim. What is decisive in this regard is how the specifications concerning the manufacturing process are to be understood from a professional perspective and what conclusions the person skilled in the art draws from this regarding the nature of the product that can be manufactured in this way.
3. If a patent claim does not contain an explicit specification regarding the sequence of process steps, this generally indicates that the sequence chosen in the patent claim is not mandatory.
4. A general term does not automatically disclose all specific terms falling under it that are not explicitly mentioned. Even though an explicit mention is not required for this, only what a person skilled in the art readily recognises upon careful reading and considers self-evident can be included in the disclosure content of a prior publication.
5. The jurisdiction of the UPC does not require that the UPCA be applied in the substantive matter. The question of jurisdiction is separate from the question of the temporal applicability of substantive law (UPC Court of Appeal, 2 June 2025, UPC-CoA-156/2025, XSYS/ESKO, para. 34; cf. CJEU, 5 September 2019, C-172/18, AMS Neve/Heritage et al., ECLI:EU:C:2019:674, para. 63 et seq.). This already follows from the fact that the court must, for reasons of legal certainty, be able to decide on the basis of the provisions of the UPCA and the Brussels Ia Regulation whether it has jurisdiction, without having to engage in a substantive examination (cf. CJEU, 16 March 1999, C-159/97, Trasporti Castelletti, para. 8).
6. The UPCA contains substantive law provisions in particular in Articles 63, 64, 67, 68 and 72 (cf. UPC Court of Appeal, 16 January 2025, UPC_CoA_30/2024, Fives/Reel, para. 66). Since there is no alignment between jurisdiction and applicable substantive law, the jurisdiction of the UPC does not entail that these provisions also apply to facts arising before 1 June 2023. There is no requirement to ensure that only the provisions of one legal order are applicable (CJEU, AMS Neve/Heritage et al., ECLI:EU:C:2019:674, para. 64).
7. While procedural provisions are generally assumed to apply from the date they enter into force, substantive law provisions must be interpreted, in the interest of legal certainty and the protection of legitimate expectations, as not applying to situations concluded before their entry into force, unless it is clearly apparent from their wording, purpose or structure that they are to be given such effect. For reasons of protection of legitimate expectations, new legal provisions are generally not applicable to legal positions that arose and were definitively acquired under the old law, but apply to future effects of a situation that arose under the old law and to new legal positions. This is different only — and subject to the prohibition of retroactivity — where, together with the new provision, special provisions are enacted that specifically regulate the conditions for its temporal application. This prohibition of retroactivity, recognised under general customary international law and also following from Article 28 VCLT, must also be observed when interpreting the UPCA (cf. UPC Court of Appeal, 2 June 2025, UPC-CoA-156/2025, XSYS/ESKO, para. 35; CJEU, 22 June 2022, C-267/20, Volvo et al./RM, paras. 31-32).
8. The UPCA contains no provisions that explicitly regulate the conditions for temporal applicability to concluded situations. In particular, Article 3 UPCA contains no such provision (UPC Court of Appeal, 2 June 2025, UPC-CoA-156/2025, XSYS/ESKO, para. 27). Article 3(c) UPCA does provide, without restriction, that the Agreement applies to all European patents which have not yet expired at the time of entry into force of this Agreement or which are granted after that date. The same applies in accordance with Article 3(d) UPCA to European patent applications. The provision does not contain an express regulation of how already concluded situations are to be dealt with. Article 24 UPCA also contains no express provision regarding the temporal applicability of already concluded situations. This means that concluded situations relating to European bundle patents that arose before 1 June 2023 are governed by national substantive law, to be determined pursuant to Article 24(2)(a) UPCA in conjunction with Article 8(1) of Regulation (EC) No 864/2007 (Rome II). A situation is concluded when a legal position has arisen. In the case of claims for injunctive relief, the situation is only concluded when the infringement has definitively and seriously ceased, because each threatened or actual infringement gives rise to a new claim for prohibition that also has future effect. This means that where the infringer has not definitively and seriously ceased the infringing acts before 1 June 2023, the prohibition of retroactivity does not preclude the application of Article 63 UPCA (final injunctions).
9. The same applies to remedies under Article 64(2)(b), (c), (d) and (e) UPCA. Claims for recall and destruction from the distribution channels concern only the infringing items still present in the distribution channels and thus do not constitute a situation concluded before the filing of the action after 1 June 2023. The same applies to the claim for destruction, which concerns only the products in the direct and/or indirect possession and/or ownership of the infringer.